

Jasbir Singh And Ors vs State Of J&K And Ors on 9 October, 2024

Sr. No. 10

HIGH COURT OF JAMMU & KASHMIR AND LADAKH
AT JAMMU

CRM(M) No.622/2019
CrIM No.1541/2024
CrIM No.1444/2019

Jasbir Singh and Ors.

.... Petitioner (s)

Through :- Mr. Prem Sadotra, Advocate.

V/s

State of J&K and Ors.

....Respondent(s)

Through :- Mr. Mohit Gupta, Advocate for R-4.

Coram: HON'BLE MR. JUSTICE MOHD. YOUSUF WANI, JUDGE

ORDER

(09.10.2024)

1. Through the medium of the instant petition filed under Section 561-A of the Code of Criminal Procedure, 1989 Svt. (now repealed and hereinafter to be referred as the 'Code' for short), the petitioners have sought the quashment of FIR No. 08/2019 dated 20.09.2019, that came to be registered by the Police Station, Kathua under Sections 498-A, 323, 406 & 34 RPC against them inter alia on the ground that the same is the outcome of a false and frivolous complaint filed by respondent No. 4 just to harass and intimidate them.

2. This Court on presentation of the instant petition, vide ad interim order dated 25.10.2019, while giving liberty to the Investigating Officer to proceed with the investigation, directed him to await the orders of the court for presentation of the final report/challan. The said interim order was extended from time to time and is in force as on date.

3. Today, respondent No. 4, Manpreet Kour, D/o S. Manjeet Singh has appeared in person, whose identity has been ascertained. She submits that she has compromised the matrimonial dispute with the petitioners and in this regard, petitioner No. 5 has filed an application bearing CMP No. 1541/2024 for placing on record the compromise deed. The respondent No. 4 who has filed the FIR in question against the petitioners is accompanied by her mother. Both of them submitted that they have resolved all the issues with the petitioners, as such, they want that the present petition filed by the petitioners for quashment of the FIR may be allowed.

4. It is submitted by Mr. Prem Sadotra, learned counsel for the petitioners, that Hon'ble Supreme Court has in case titled B. S. Joshi Vs. State of Haryana; AIR (2003) SC 1386 allowed the quashment of FIR pursuant to the mutual compromise between the husband and the wife, leading to the dissolution of marriage.

5. I have gone through the compromise deed entered into between petitioner No. 5 and respondent No.4 forming annexure to the CM 1541/2024. They have by way of compromise decided to dissolve their marriage, in connection whereof a petition under the provisions of the Hindu Marriages Act, 1955, is reported to have been filed by them before the competent authority for decree of dissolution of marriage.

6. In the facts and circumstances of the case, having regard to the mutual settlement of the long pending matrimonial dispute between the petitioner No. 5 and respondent No. 4, this Court is of the considered opinion that it will meet the ends of justice in case this Court quashes the FIR in question by invoking its inherent powers vested under the provisions of Section 561-A of the Code to inter alia pass any order for securing the ends of justice. The quashment of FIR in question is likely to set at rest long controversy between the contesting parties.

7. Although this Court is of the opinion that an FIR and the consequent charge-report culminating from the investigation cannot be generally and in a routine manner allowed to be quashed in exercise of the powers under Section 561-A of the Code corresponding to Section 482 of the Code of 1973 and Section 528 of Bharatiya Nagrik Suraksha Sanhita, 2023 ('BNSS' for short), on the mere ground that the parties have settled their controversy that had become the cause of the occurrence, yet the provisions of Section 345 of the Code corresponding to Section 320 of the Central Code (both repealed) and corresponding to Section 359 of the BNSS do not restrict the powers of this Court vested in it under Section 528 of BNSS to quash the FIR and the consequent investigation process in exceptional circumstances for furthering the cause of justice especially in cases where the matrimonial disputes involving two families are amicably settled subsequent to registration of the FIR.

8. Notwithstanding, the satisfaction of this Court to allow the instant petition in the backdrop of the settlement between the parties, it is needful to mention that in case the FIR's and the criminal cases culminating from the investigations are allowed to be quashed in a routine manner and at the wish of the complainants and/or accused, the criminal justice system is likely to become a causality and the society at large will have to bear the consequences.

9. Both the repealed Code of 1973 and the new Code of 2023 as per the provisions respectively contained under Sections 320(9) and 359(9) provide that no offence shall be compounded except as provided under the said sections.

10. The provisions of the Section 320 of the Code of 1973 corresponding to the Section 359 of the new Code i.e. Bharatiya Nagrik Suraksha Sanhita, 2023 do not restrict but limit and circumvent the powers of this Court under Section 482 of the Code corresponding to Section 528 of the BNSS regarding quashment of FIR's and criminal proceedings, for the sake of the society at large, which is the real beneficiary of the criminal justice delivery system.

11. It has been held by the Hon'ble Apex Court in Gopakumar B. Nair Vs. CBI; (2014) 5 SCC 800 that, "Though quashment of non- compoundable offence under Section 482 Cr. P.C. following settlement between parties would not amount to circumvention of Section 320, but such power has to be exercised with care and caution and would depend on facts of each case."

12. The Hon'ble Apex Court in the case referred to by the learned counsel for the petitioners has almost under similar situation allowed the quashment of FIR that was also registered on the complaint of wife pursuant to the mutual settlement of the parties leading to dissolution of marriage.

13. It is profitable to reproduce the relevant paras of the authoritative judgment referred to by the learned counsel for the petitioners:

"There is no doubt that the object of introducing Chapter XX- A containing Section 498-A in the Indian Penal Code was to prevent the torture to a woman by her husband or by relatives of her husband. Section 498-A was added with a view to punishing a husband and his relatives who harass or torture the wife to coerce her or her relatives to satisfy unlawful demands of dowry. The hyper-technical view would be counterproductive and would act against interests of women and against the object for which this provision was added. There is every likelihood that non-exercise of inherent power to quash the proceedings to meet the ends of justice would prevent women from settling earlier. That is not the object of Chapter XX-A of Indian Penal Code.

In view of the above discussion, we hold that the High Court in exercise of its inherent powers can quash criminal proceedings or FIR or complaint and Section 320 of the Code does not limit or affect the powers under Section 482 of the Code."

14. For the foregoing discussion, the instant petition is allowed and the impugned FIR along with the investigation proceedings conducted pursuant to the registration of the same by the respondent No. 3/Investigating Officer of the case is quashed.

15. With the aforesaid direction, the present petition stands disposed of along with connected CM(s).

(Mohd. Yousuf Wani) Judge JAMMU 09.10.2024 Eva Whether the order is speaking? Yes/No.
Whether the order is reportable? Yes/No.